

#	Case Name	Tentative
		of their obligors. The restraining order is appropriate as a tool to prevent Judgment Debtors from engaging in any bad faith and to aid the Judgment Creditor in satisfying the Judgment. The motion is unopposed. The Judgment Creditor has made a sufficient showing, Accordingly, the motion is GRANTED. The court will execute the proposed order submitted in support of the motion. Judgment Creditor shall give notice of this ruling.
56.	Dirr v. Quizhpi 2024-01432550	Defendants Nelson Quizhpi and LQ Capital Trust, Inc.'s motion for change of venue is GRANTED. Defendants have shown venue is improper in Orange County. (See Code Civ. Proc. § 395 [venue proper "where the defendants or some of them reside."] No defendant resides in Orange County. Defendant LQ Capital Trust, Inc. is a resident of Los Angeles County. This matter is ORDERED transferred to Los Angeles County Superior Court. Specifically, this case is transferred to the Los Angeles County Superior Court located at 9355 Burton Way, Beverly Hills, CA 90210. Plaintiff is ordered to pay all fees necessary to effectuate the transfer, which include, but are not necessarily limited to, (1) the transfer fee of \$50, which must be paid via a check made payable to the clerk of the court, and (2) the first appearance fee for the new court, which must be paid via a separate check made payable to the clerk of the court. Plaintiff is ordered to submit both checks to the clerk of the Orange County Superior Court within 30 days of this ruling (and the first appearance check will be forwarded to the new court along with other materials). Plaintiff is further ordered to take all other steps necessary to effectuate the transfer. If plaintiff fails to pay the fees within 30 days, the case will be dismissed, without prejudice. The court sets a status conference regarding the transfer of this action for September 18, 2026 at 9:00 a.m. in Department C28. Defendants shall give notice of this ruling.

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57.	Murray v. Priority Plus Financial LLC 2025-01453046	Plaintiffs Mayah Murray, Daniel Almance, Tanya Barbosa, Mariel Bolton, Anthony Durbin, Patrick Kaltenbach, Jonathan Ramlow, Brennan Ramos, Phil Ramos, Sylvain Reyes, Zachary Williams, Cathleen Camunas, Steven Crawford, Tara Erickson, Nathaniel Grande, Erik Margerum, Brandon Mendizabal, Nicole Portwood, Derek Price, Michael Priest, Rick Riggan, Michelle Schulman, Allison Taylor, Chantel Boses, Jess Daly, Ryan Maniaci, and Kori Prather’s (collectively, plaintiffs) motion to enforce settlement is GRANTED, as follows. (See Code Civ. Proc., § 664.6.) The court ORDERS the entry of judgment pursuant to the terms of the subject settlement agreement in the total amount of \$663,020.35 in favor of plaintiffs, and jointly and severally against defendants Priority Plus Financial LLC, Brandon Avila, Todd Avila, individually and as Trustee of Cashcow Holdings Trust, Christopher Schlegel, and Horned Frogs LLC (collectively, defendants). (See Janzen Decl. at Ex. A [subject settlement agreement].) The settlement agreement requires defendants to pay a total settlement sum of \$3.1 million to plaintiffs over four payments as specified in the agreement, and it is undisputed that \$663,020.35 of this sum remains unpaid and due. (Janzen Decl. at Ex. A [settlement § 1.2(1)]; see <i>id.</i> ¶¶ 6, 10, 22 [first, second, and fourth payments have been made]; see also Williams Decl. ¶ 10, Ex. B [attempting to negotiate extension of deadline for third payment]; Opp. at pp. 2:3-4, 2:13-16, 5:11-6:11 [only \$20,697.65 of the third payment of \$683,718 has been made]; see also Reply at p. 2:3-5 [acknowledging defendants’ payment of \$20,697.65].) A party moving for the entry of judgment pursuant to a settlement under Code of Civil Procedure section 664.6 need not establish a breach of contract to support relief under the statute; the court may enter judgment pursuant to the settlement agreement regardless of whether a party has breached its terms or not. (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1184-1185; see <i>Machado v. Myers</i> (2019) 39 Cal.App.5th 779, 796 [whether a party is in breach is “not relevant to the entry of judgment pursuant to section 664.6”].) Plaintiffs’ request for prejudgment interest pursuant to Civil Code section 3289 is DENIED. “Prejudgment interest is not a cost, but an element of damages.” (<i>BTHHM Berkeley, LLC v. Johnston</i> (2024) 100 Cal.App.5th 1220, 1225; <i>North Oakland Medical Clinic v. Rogers</i> (1998) 65 Cal.App.4th 824, 830 [“It is well established that prejudgment interest is not a cost, but